



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2917: firefighter cancer registry

MARSHALL FLOOR AMENDMENT

1. Requires DHS to obtain written consent before collecting specified information from a firefighter who is eligible to be included in the firefighter cancer registry, or their authorized designee if the firefighter is deceased.
2. Allows, instead of requires, a firefighter diagnosed with cancer while employed as a firefighter to participate in the firefighter cancer registry.

ADDITIONAL COW
MARSHALL FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2917
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 36, chapter 1, article 2, Arizona Revised
3 Statutes, is amended by adding section 36-133.01, to read:

4 36-133.01. Firefighter cancer registry; use of information
5 collected; reporting requirements;
6 confidentiality; definition

7 A. THE DEPARTMENT SHALL ESTABLISH AND ADMINISTER A FIREFIGHTER
8 CANCER REGISTRY FOR THE PURPOSE OF COLLECTING, MAINTAINING AND ANALYZING
9 DATA REGARDING THE INCIDENCE OF CANCER AMONG FIREFIGHTERS IN THIS STATE.
10 THE FIREFIGHTER CANCER REGISTRY SHALL BE ADMINISTERED IN COMPLIANCE WITH
11 ALL APPLICABLE STATE AND FEDERAL CONFIDENTIALITY AND PRIVACY LAWS,
12 INCLUDING THE HEALTH INSURANCE PORTABILITY AND ACCOUNTABILITY ACT OF 1996.

13 B. [AFTER RECEIVING WRITTEN CONSENT FROM A FIREFIGHTER WHO IS
14 ELIGIBLE TO BE INCLUDED IN THE FIREFIGHTER CANCER REGISTRY, OR THE
15 FIREFIGHTER'S AUTHORIZED DESIGNEE IF THE FIREFIGHTER IS DECEASED,] THE
16 DEPARTMENT SHALL COLLECT, TO THE EXTENT PRACTICABLE, THE FOLLOWING
17 INFORMATION FOR [EACH] [THE] FIREFIGHTER [INCLUDED IN THE FIREFIGHTER
18 CANCER REGISTRY]:

- 19 1. THE FIREFIGHTER'S AGE AT THE TIME OF THE CANCER DIAGNOSIS.
- 20 2. THE FIREFIGHTER'S GENDER.
- 21 3. THE TYPE OF CANCER DIAGNOSED.
- 22 4. THE DATE OF DIAGNOSIS.
- 23 5. THE STAGE OF CANCER AT DIAGNOSIS, IF AVAILABLE.
- 24 6. THE FIREFIGHTER'S LENGTH OF SERVICE AS A FIREFIGHTER.
- 25 7. THE FIREFIGHTER'S CURRENT AND PRIOR FIRE DEPARTMENTS, FIRE
26 DISTRICTS OR DUTY STATIONS.
- 27 8. THE FIREFIGHTER'S JOB CLASSIFICATION OR PRIMARY DUTIES.

1 9. EXPOSURE-RELATED INFORMATION, IF AVAILABLE, INCLUDING THE
2 DURATION AND TYPE OF OCCUPATIONAL EXPOSURE.

3 10. WHETHER THE FIREFIGHTER IS ACTIVE, RETIRED OR DECEASED AT THE
4 TIME OF REPORTING.

5 11. ANY OTHER DATA ELEMENTS THE DEPARTMENT DETERMINES ARE NECESSARY
6 TO FULFILL THE PURPOSES OF THE REGISTRY.

7 C. FOR THE PURPOSES OF THE FIREFIGHTER CANCER REGISTRY, THE
8 DEPARTMENT MAY COLLECT INFORMATION FROM ANY OF THE FOLLOWING SOURCES:

9 1. FIRE DEPARTMENTS AND FIRE DISTRICTS.

10 2. HEALTH CARE PROVIDERS AND HEALTH CARE FACILITIES.

11 3. THE ARIZONA CANCER REGISTRY OR OTHER EXISTING CANCER
12 SURVEILLANCE SYSTEMS.

13 4. WORKERS' COMPENSATION INSURERS OR ADMINISTRATORS.

14 5. FIREFIGHTERS OR A FIREFIGHTER'S AUTHORIZED DESIGNEE, ON A
15 VOLUNTARY BASIS.

16 D. A FIREFIGHTER WHO IS DIAGNOSED WITH CANCER WHILE EMPLOYED AS A
17 FIREFIGHTER IN THIS STATE OR AFTER SEPARATION FROM SERVICE ~~[IS REQUIRED~~
18 ~~TO]~~ [MAY] PARTICIPATE IN THE FIREFIGHTER CANCER REGISTRY TO THE EXTENT THE
19 DIAGNOSIS IS KNOWN TO A PERSON OR ENTITY DESCRIBED IN SUBSECTION C OF THIS
20 SECTION. A FIREFIGHTER IS NOT REQUIRED TO PERSONALLY SUBMIT MEDICAL
21 INFORMATION IF THE INFORMATION IS OTHERWISE COLLECTED PURSUANT TO
22 SUBSECTION C OF THIS SECTION.

23 E. HEALTH CARE PROVIDERS, HEALTH CARE FACILITIES, FIRE DEPARTMENTS
24 AND FIRE DISTRICTS THAT OBTAIN INFORMATION ~~[REGARDING A]~~ [RELATING TO A
25 FIREFIGHTER WHO HAS PROVIDED THE DEPARTMENT OF HEALTH SERVICES WITH
26 WRITTEN CONSENT AND THAT] FIREFIGHTER'S CANCER DIAGNOSIS SHALL REPORT THE
27 INFORMATION TO THE DEPARTMENT [OF HEALTH SERVICES] IN THE MANNER AND FORM
28 PRESCRIBED BY THE DEPARTMENT [OF HEALTH SERVICES]. FIRE DEPARTMENTS AND
29 FIRE DISTRICTS SHALL PROVIDE EMPLOYMENT AND SERVICE-RELATED INFORMATION AS
30 PRESCRIBED IN SUBSECTION B OF THIS SECTION THAT IS REQUESTED BY THE
31 DEPARTMENT [OF HEALTH SERVICES].

32 F. ALL PERSONAL IDENTIFYING INFORMATION COLLECTED PURSUANT TO THIS
33 SECTION IS CONFIDENTIAL AND IS NOT SUBJECT TO PUBLIC INSPECTION OR
34 DISCLOSURE PURSUANT TO TITLE 39, CHAPTER 1.

35 G. THE DEPARTMENT MAY USE AGGREGATED AND DE-IDENTIFIED DATA FROM
36 THE FIREFIGHTER CANCER REGISTRY FOR:

37 1. PUBLIC HEALTH RESEARCH.

38 2. STATISTICAL ANALYSIS.

39 3. REPORTS TO THE GOVERNOR AND THE LEGISLATURE.

40 4. THE DEVELOPMENT OF CANCER PREVENTION STRATEGIES AND OCCUPATIONAL
41 EXPOSURE-REDUCTION POLICIES.

42 H. INFORMATION CONTAINED IN THE FIREFIGHTER CANCER REGISTRY MAY NOT
43 BE USED TO DETERMINE AN INDIVIDUAL FIREFIGHTER'S ELIGIBILITY FOR WORKERS'
44 COMPENSATION BENEFITS, RETIREMENT BENEFITS OR INSURANCE COVERAGE.

45 I. ON OR BEFORE DECEMBER 31, 2027, AND ANNUALLY THEREAFTER, THE
46 DEPARTMENT SHALL SUBMIT A WRITTEN REPORT TO THE GOVERNOR, THE PRESIDENT OF
47 THE SENATE AND THE SPEAKER OF THE HOUSE OF REPRESENTATIVES, AND SHALL

1 SUBMIT A COPY TO THE SECRETARY OF STATE, SUMMARIZING AGGREGATED DATA AND
2 TRENDS IDENTIFIED THROUGH THE FIREFIGHTER CANCER REGISTRY. THE REPORT
3 SHALL INCLUDE, AT A MINIMUM:
4 1. THE NUMBER OF FIREFIGHTERS INCLUDED IN THE REGISTRY.
5 2. THE TYPES AND PREVALENCE OF CANCERS REPORTED.
6 3. TRENDS RELATED TO AGE AND YEARS OF SERVICE.
7 4. GEOGRAPHIC OR DEPARTMENTAL PATTERNS, IF IDENTIFIABLE.
8 5. ANY RECOMMENDATIONS FOR LEGISLATIVE ACTION.
9 J. FOR THE PURPOSES OF THIS SECTION, "FIREFIGHTER" MEANS AN
10 INDIVIDUAL WHO IS EMPLOYED BY OR WHO SERVES ON A FULL-TIME, PART-TIME,
11 VOLUNTEER, PAID-ON-CALL OR RESERVE BASIS WITH A PUBLIC OR PRIVATE FIRE
12 DEPARTMENT OR FIRE DISTRICT AND WHO IS ENGAGED IN FIRE SUPPRESSION,
13 EMERGENCY MEDICAL SERVICES, HAZARDOUS MATERIALS RESPONSE, RESCUE SERVICES
14 OR RELATED DUTIES.

15 Enroll and engross to conform
16 Amend title to conform

DAVID MARSHALL, SR.

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